

EnrollAsst

New Jersey launch: the steps, and the law

Prepared 10 August 2026

Part one lays out the path to launch. Part two is the legal and compliance research, four independent research passes with every load-bearing claim verified against primary sources. Research to brief a lawyer with, not legal advice.

beforewequote.com is the client-facing intake. EnrollAsst is the product for brokers. The recommendation is shown only to the licensed agent, by design.

PART ONE

The path to launch

Written 10 August 2026, corrected the same day by Jon: launch does not wait for open enrolment. Special enrolment runs year round, job loss, marriage, divorce, birth, moves, aging off a parent's plan, each opening a 60 day window, and the engine was built for it: the life events section exists for exactly this, the conversion flags the special enrolment window and whether it is still open, and pricing already scales to months of coverage remaining. A special enrolment client today buys a 2026 plan, which is precisely the data on disk and verified.

So launch means real special-enrolment prospects at beforewequote.com as soon as the gates below clear, with the steady trickle of special enrolment serving as a natural soft launch months before the open enrolment flood, 1 November 2026 to 31 January 2027 on GetCoveredNJ.

Explicitly out of scope here, at Jon's direction: the validation sessions with Mike. They are tracked in mikesession-runbook.md and they remain the only thing that proves the engine's recommendations are good. Everything below makes the product launchable; nothing below makes it trustworthy. Do both.

Gate 1: the server. Biggest build, no external dependency, start first

Stack decided by Jon on 10 August after the trade-off was laid out: ****Vercel hosting plus Supabase for both Postgres and logins****, one vendor and one source of truth, with row-level security living inside the database. The alternative (Neon plus Clerk, polished org screens at the cost of a permanent sync seam) was considered and declined; revisit the login layer only if enterprise polish becomes a sales requirement. Notifications ship email-first; the 10DLC carrier registration for agent SMS starts now so texts can follow without blocking anything. The engine stays in the browser for v1: the server is storage, login and delivery, not a rebuild of the brain.

Build order, each slice testable when done: submissions land server-side with the code minted there; agent login and the submissions list; the notification email; the agency table, subdomains and invites; the ops floor. Then cutover: beforewequote.com points at the app and the localStorage era ends.

Today the survey and the agent view talk through one browser's localStorage. Launch requires the server work specified in handoff-2026-08-10.md, all four decisions plus the constraints:

- Submission endpoint and Postgres. The schema in src/store/schema.sql was written so this is a port, not a redesign, and db.ts says so in its header.
- Code minting server-side, per-agent intake addresses (wildcard subdomain routes the submission to its agency), rate limiting on the open write path.
- Agent login, bought from a hosted auth service, answering only "who is this and which brokerage". Whole-agency visibility. Scoping plus Postgres row-level security, never UI filtering.
- Agent dashboard: submissions list, open one, see the recommendation. Decide whether the engine runs server-side or stays in the browser fed by served data; either works, pick one deliberately.
- Notifications per Decision 3: SMS and email to the agent, client code and nothing else in the body. If SMS ships at launch, 10DLC registration takes weeks of carrier lead time and must start early.

- Operations floor: encrypted at rest, backups with a tested restore, error monitoring, audit logging. The memory rule: this data is pseudonymous, not anonymous, so it is guarded like it matters.

Gate 2: the rebrand landed on the pages. Blocked on design, small to apply

- Client-facing pages become Before We Quote, agent-branded (Mike's name and face), product-silent. "Ask Mike" retired from everything a prospect sees.
- The "Testing arrangement" notice, the draft band, and every scaffolding element comes off the launch build.
- Real-device pass on phones. The form has a viewport meta and mobile breakpoints, so this is verification, not construction: prospects will fill this from a text link on a phone, so it must be excellent there, not merely functional.
- Accessibility basics (labels, contrast, keyboard path through the form) and one real-paper print of both agent sheets. Print CSS was fixed by emulation on 10 August; a physical printer confirms it.

Gate 3: the questionnaire's honesty. CLEARED 10 August

Resolved the day it was written, on Jon's "fix gate 3". The correction to the original claim first: `health_system` was never unread. It feeds preferredHealthSystems, shows on the agent's household card, and `rank.ts` raises a per-plan "network not yet verified against X" caveat from it. The other four network questions and `perceived_spend` were genuinely unread, and now are not:

- `primary_care_doctor` and specialists reach the agent verbatim on the household card as "Doctors to keep", the agent's checklist for a by-hand directory lookup, never parsed or matched, because the tool holds no provider directory and must not pretend to.
- `network_priority` shows beside the doctors in the client's own words, and the "must" answer raises a Before-you-quote flag: network fit decides that sale and the tool cannot verify networks.
- `network_price` shows as "their switching number", the client's own price for changing doctors, which is the number the agent negotiates against.
- `perceived_spend` joins the household facts as "their guess at last year's out of pocket", beside the computed estimates, which is what its own rationale always promised.
- All five now carry routing "flag" in the questionnaire, which is the taxonomy telling the truth: surfaced to the agent, not in the maths. The aspirational `network_priority` rationale was rewritten to describe what happens today. Nothing was cut.

Re-measured after: questions touching nothing fell from 12 to 8, flag-backed questions rose to 11, and every remaining "touches nothing" entry is either application plumbing or awaits copays. Wiring provider-directory data stays out of launch scope, and the flag routing comment says not to promote these to intake until it exists.

Gate 4: plan year 2027 data. Gates the open enrolment season, not launch

Everything on disk is plan year 2026, which is correct for every special enrolment sale through 31 December. The 2027 filings gate only the open enrolment season. The NJ SBE publishes them in the fall; when they drop:

- Refresh the dataset, rebuild, and re-run the full verification suite: question-value, sensitivity, the dental audit (county limits and the three-child cap re-checked against 2027 rows), and the pediatric dental embed count, which is currently 24 of 176, all UnitedHealthcare, and may change.
- Re-verify every number that appears in user-facing copy. The copy rule: nothing prints that is not true of the loaded year.
- The two-decision timeline card already handles the year straddle.

Legal and commercial wrap. Parallel track, needs humans

Researched in depth on 10 August, four lanes plus adversarial verification of every statutory claim: see [legal-compliance-research.md](#). The short version: the product's core design choices (agent-only recommendations, intake-only consumer side, no PII, verbatim answer records) came back as the legally correct pattern on four independent bodies of law. The build items it adds are all tractable: a clickwrap and a standalone health-data opt-in at intake start, producer identification and an insurance information practices notice on every agent subdomain, a privacy policy that matches the code exactly, native WCAG 2.1 AA accessibility with no overlay widgets, permanently tracker-free health pages, and an agent review-and-adopt flow with a frozen, exportable audit record. Six consolidated questions go to a NJ insurance lawyer; Mike pulls his Broker Acknowledgment and checks his E&O policy for new AI exclusions.

- Domains: [beforewequote.com](#) nameservers delegated to Vercel, wildcard ready for per-agent subdomains. [enrollasst.com](#) stays parked until the broker site exists.

The two clocks

Special enrolment launch, gated by Gates 1 to 3 plus legal, not by the calendar:

- Server build, questionnaire decisions, rebrand applied as design delivers, legal wrap in parallel. Live on special enrolment traffic the moment they clear. Low steady volume, every case watchable, the 60 day window making the product's speed argument for it.

Open enrolment readiness, gated additionally by Gate 4:

- Fall: 2027 filings land, refresh and re-verify everything, including the dental facts and the embedded pediatric dental count.
- Mid-October: freeze. No risky changes after; near-all annual volume lands between 1 November and 31 January.

The validation sessions with Mike sit before both clocks, because a launch-ready product running an unvalidated engine is a fast way to be confidently wrong at scale. Special enrolment's trickle is also the natural place for that validation to happen on real cases.

PART TWO

Legal and compliance research

Researched 10 August 2026 by four independent research passes (privacy law, marketplace and producer rules, professional liability, website obligations) with a fifth adversarial pass that checked every load-bearing claim against primary sources: statute text, regulator pages, court opinions, FTC orders. Every checked claim was CONFIRMED; corrections and nuances the checker found are folded in below. This is research to brief a lawyer with, not legal advice, and the counsel questions at the end are the point of the exercise.

The headline: the product's design is the legally correct pattern

Four independent bodies of law each validate a choice this product already made:

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ed. **Agent-only recommendations sit on the right side of the licensing line.** NJ reserves "conferring directly with or offering advice directly to a purchaser" about a particular policy's benefits to licensees (N.J.S.A. 17:22A-28), and N.J.A.C. 11:17A-1.2 carves out clerical work (taking applications, receiving information) for unlicensed persons. A tool that collects answers and shows the shortlist only to the licensed agent stays inside the carve-out. Software showing recommendations to consumers would flirt with unlicensed "negotiating" or "insurance consultant" activity.

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ed. Intake-only keeps EnrollAsst out of the web-broker regime. The federal definition (45 CFR 155.20, 155.220) turns on hosting a site that interfaces with an exchange to complete plan selection. GetCoveredNJ is a standalone state exchange with no direct-enrollment channel at all, so the guardrails are: never display plan comparisons to consumers, never connect to GetCoveredNJ, never complete an application. Enrolment always happens in the state broker portal, by the certified agent.

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ed. No-PII pays off in breach law. NJ breach notification (N.J.S.A. 56:8-161 et seq.) keys on name plus SSN, license, account numbers, or login credentials. The consumer survey store contains none of those, so its breach likely triggers no consumer notification. The one in-scope dataset is agent emails and passwords, which makes agent authentication the highest-sensitivity surface in the product.

4. Verbatim stored answers are the liability defense. NJ producers carry a fiduciary duty (Aden v. Fortsh, 2001) and a heightened duty when conduct invites reliance (Sobotor, Triarsi); the shield is proof the agent acted on the client's own stated needs (Duffy, 2014). The tool's verbatim answer record is exactly that proof, and it also rebuts the steering theory in DOJ's 2025 False Claims Act case against carriers and brokerages (a Medicare Advantage case, but the clearest signal of where regulators think broker suitability duties sit).

What the law says we must add. All buildable, none optional

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ed. A clickwrap at intake start (NJ enforces clickwrap, Caspi v. Microsoft, 1999; browwrap is unreliable).

One affirmative act before question one, recorded against the claim code with timestamp, covering: I am 18 or older; consent to electronic records (NJ UETA / E-SIGN); this site collects information for your licensed agent and gives no advice, no recommendation, no offer of coverage; the agent identified by name.

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ed. A standalone health-data opt-in before the health questions. The NJ Data Privacy Act treats health condition, treatment and diagnosis answers as sensitive data requiring unbundled opt-in consent. Volume thresholds (100,000 NJ consumers) mean the act likely does not bind at launch, but the consent step costs nothing, future-proofs scale, and is a brokerage selling point. Crucial nuance the checker confirmed: NJ has NO pseudonymous-data carve-out. Coded answers joinable through the agent's CRM are fully regulated personal data. The word "anonymous" must never appear in any copy; the true sentence is "we do not ask for your name, date of birth, contact information, or Social Security number."

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ed. Producer identification on every agent subdomain (N.J.A.C. 11:17A-2.6): the agent's name exactly as licensed, agency name, the relationship represented, NPN, and a link to the state license lookup. The intake site is producer advertising under N.J.A.C. 11:2-11 (which explicitly covers internet material), so consumer-facing copy makes no benefit, premium or savings claims about particular plans and never implies state endorsement.

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ed. A notice of insurance information practices under the NJ Insurance Information Practices Act (N.J.S.A. 17:23A-4), templated per agent and shown or linked at intake. This 1985 insurance-specific statute applies to agents NOW, regardless of any privacy-law threshold, and DOBI Bulletin 01-10 means an agent collecting data through his own tool cannot lean on a carrier's notice. Contents: what is collected and how, disclosure circumstances, access and correction rights, the insurance-support organization retention statement. Penalties run to license suspension.

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ed. A privacy policy that matches the code exactly. Seven NJDPA notice elements, the 17:23A layer, an express "no sale of personal data, no targeted advertising, no consumer profiling" statement, and a description of the localStorage draft. The FTC's GoodRx and BetterHelp cases were built on privacy promises operations contradicted, and BetterHelp specifically involved intake questionnaire answers. This product's existing copy-must-be-true rule is literally the compliance strategy.

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ed. WCAG 2.1 AA accessibility, native, no overlay widgets. 2025 set a record for web accessibility suits (3,117 federal, 5,000+ with state courts), forms are DOJ's named barrier category, and roughly a quarter of sued sites had an overlay widget installed when the complaint arrived. Build the intake accessible (labels, keyboard, contrast, focus, announced errors), test with a screen reader each release, publish an accessibility statement with a working contact.

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ed. Tracker-free health pages, permanently. No analytics, pixels, session replay, third-party chat or fonts

on any page touching health answers. This is the FTC enforcement line (GoodRx \$1.5M, BetterHelp \$7.8M, Premom, Monument, Cerebral) and the wiretap class-action wave. The current design already complies; the brokerage contract must forbid customers injecting their own trackers into their subdomains.

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- ed.** An agent adoption flow with an audit trail. The agent opens, reviews, and affirmatively adopts (or overrides with a reason) before anything reaches the client. This single feature preserves the agent's E&O coverage (underwriters now ask how reliance on tools is validated, and AI exclusions are being filed into E&O lines by AIG, W.R. Berkley and Great American, with an ISO generative-AI exclusion effective January 2026), keeps the vendor in the decision-support role, and creates the record that wins the liability cases above. Freeze the data vintage the agent saw, make the record exportable with the claim code and a content hash, retain 7 to 10 years.
- 9.** Vendor terms on the market pattern. Decision-support only, as-is data accuracy disclaimer, agent duty to verify with carrier or exchange, liability capped at 12 months of fees (HealthSherpa caps at \$100; a fees cap is more defensible), consequential damages excluded, agent indemnity. Brokerage contracts carry NJDPA processor terms and GetCoveredNJ privacy flow-down (45 CFR 155.260(b) obliges the exchange to bind brokers and their downstream vendors to its privacy standards).

The watch list

- A5328, signed 30 June 2026: new NJ law banning the SALE of sensitive data regardless of thresholds, with a data broker registry from March 2027. We never sell data, so this confirms posture rather than changing it, but it shows NJ privacy law is moving; monitor.
- NJDPA regulations: the June 2025 proposed rules expired unadopted in June 2026; the statute stands alone and the mandatory cure period ended 1 July 2026. A re-proposal could revive strict de-identification positions.
- The 100,000-consumer threshold: EnrollAsst using survey data for its own purposes (analytics, tuning) would make it a controller counting all brokerages' consumers combined. That is the realistic path into NJDPA scope, and the consent and policy work above means crossing it is a non-event.
- FTC Health Breach Notification Rule: probably does not reach a tool managed for the agent rather than the individual, but the 2024 revision is broad and the FTC is aggressive. Design as if it applies; document the position that it does not.
- E&O AI exclusions: every agent renewal from here on should be checked for newly attached AI or technology exclusions.

Questions for a NJ insurance lawyer, consolidated

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- ed.** Is EnrollAsst an "insurance-support organization" under N.J.S.A. 17:23A-2, and does the 17:23A-4 notice duty fall on the agent, the vendor, or both? (The definition plausibly covers a survey vendor; no authority applies it to SaaS intake.)

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- ed.** Does a licensed producer or brokerage qualify for the NJDPA GLBA financial-institution exemption,

and is intake data in the vendor's hands exempt "data subject to Title V"?

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ed. Is EnrollAsst a "vendor of personal health records" under the revised 16 CFR 318.2?

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ed. Review the signed GetCoveredNJ Broker Acknowledgment (not public) for conduct, marketing, or data terms reaching third-party tools, and the final consumer copy against N.J.A.C. 11:2-11.

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ed. Are the liability cap and indemnity enforceable against NJ brokerages as drafted, and does anything in the tool's operation constitute unlicensed production under N.J.S.A. 17:22A?

6. Does the NJ Law Against Discrimination reach an agent's intake site independent of the federal physical-nexus limit?

Mike's personal list

- Pull his signed GetCoveredNJ Broker Acknowledgment for the lawyer.
- Confirm his E&O policy's professional-services definition covers individual marketplace health sales, and ask at renewal about AI or technology exclusions; keep a one-page description of the tool-assisted workflow with human review for underwriters.
- Keep certification current each year: NJ producer license, annual GetCoveredNJ training before open enrolment, Broker Acknowledgment. When EnrollAsst signs other brokerages, this becomes an onboarding checkbox.
- No gifts or incentives to consumers for completing the intake (N.J.A.C. 11:17A-2.3).

Verification notes

Every load-bearing claim above was checked against primary sources and confirmed. Nuances the checker surfaced, kept for honesty: the DOJ False Claims Act case is about Medicare Advantage, not marketplace plans, so it is directional sentiment rather than binding doctrine here; the special-relationship factor list in the cited commentary does not itself name website advice promises as a factor (that is inference, though sound); California's web-accessibility volume is state-court, not federal; the Big I seven-year retention figure and the CMS "typed signatures insufficient" wording were plausible but not directly opened; and one research pass caught its own tool fabricating a DOBI bulletin summary and corrected it by reading the bulletin directly, which is why the adversarial pass exists.

Full lane-by-lane findings with citations live in the workflow output; the key statutes: N.J.S.A. 56:8-166.4 et seq. (NJDPa), N.J.S.A. 17:23A (insurance information practices), N.J.S.A. 17:22A-28 (producer licensing), N.J.A.C. 11:2-11 and 11:17A (advertising and conduct), 45 CFR 155.220 and 155.260 (exchange rules), 16 CFR Part 318 (FTC health breach rule), N.J.S.A. 12A:12 (UETA).

